



U.S. Department
of Transportation

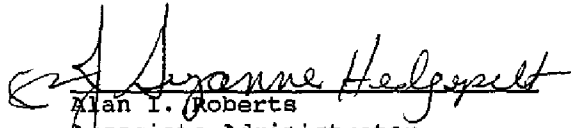
Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 9331 (EXTENSION)
FIRST REVISION September 6, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9331 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 25 1994
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

International Dioxide, Inc.
Clark, NJ

January 13, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

SEP 6 1990

DOT-E 9331
(FIRST REVISION)

1. Rio Linda Chemical Co., Sacramento, California, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a corrosive liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of sodium chlorite solution in water in DOT Specification MC 306 or 307 cargo tank and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Ashland Chemical, Inc., Columbus, Ohio - PTE-1.
International Dioxide, Inc., Clark, New Jersey - PTE-2.
Albright and Wilson Americas (Canada) (U.S. Agent: Albright
and Wilson Americas, Inc., Richmond, VA) - PTE-3.
Hoechst Celanese Corp., Somerville, New Jersey -PTE-4.

2. BASIS. This exemption is based on Rio Linda Chemical Co.'s application dated March 27, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Ashland Chemical, Inc.'s application dated January 10, 1990.
International Dioxide, Inc.'s application dated
March 5, 1990.
Albright and Wilson Americas (Canada)'s application dated
April 19, 1990.
Hoechst Celanese Corp's application dated March 27, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class). Sodium chlorite solution in water containing not more than 25% by weight of sodium chlorite, identified as AKTA-KLOR 25, classed as a corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Sodium chlorite solution.

5. REGULATION AFFECTED. 49 CFR 173.263(a)(10).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is DOT Specification MC 306 or 307 cargo tank.

8. SPECIAL PROVISIONS.

a. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on contrasting background, "DOT-E 9331".

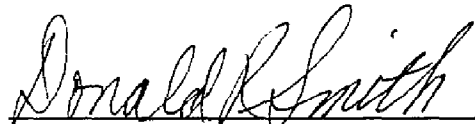
b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Motor carriers used to transport packages offered in accordance with the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. February 28, 1992.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

SEP 6 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA.